

收集個人資料收集聲明 (委任／受委人之申請者)

定義

1. 本收集個人資料收集聲明(「聲明」)中使用的「查閱資料要求」,「改正資料要求」,「資料當事人」,「資料使用者」,「核對程序」及「個人資料」,具有《條例》中規定的含義。

就本聲明而言:

「委任」指任命個別人士而其所提供的服務乃通過與宏利達成以下協議委任該個別人士而獲得:(i)就宏利人壽保險(國際)有限公司而言,該公司的標準Career Agent's Agreement及／或Agency Management Agreement及／或Career Pensioner's Agreement及／或Personal Production Agreement及(ii)就宏利投資管理(香港)有限公司而言,該公司的標準Agent Agreement,而「受委任的」及「受委人」亦應據此作解釋。

「香港」指香港特別行政區。

「申請者」指一項委任之個別申請人。

「宏利」指就各自申請者及／或受委人而言的宏利人壽保險(國際)有限公司或宏利投資管理(香港)有限公司(視情況而定)。

「宏利集團」指宏利金融有限公司及其子公司和關聯公司。

「條例」指《個人資料(私隱)條例》。

收集

2. 申請者需要向宏利提供與其申請相關的個人資料。如未能提供該等資料可能導致宏利無法處理其申請。
3. 宏利在委任過程中會從受委人處收集或獲得個人資料,及／或就受委人而言收集或獲得其個人資料。

目的

4. 申請者或受委人(視情況而定)的個人資料使用目的可包括以下各項:-
 - (a) 評估申請者擔當所申請職位之職務的適合性及／或評估受委人對其不時同意或合資格擔當任何職位之職務(由宏利集團任何成員或宏利集團外的任何公司或實體,包括但不限於經營一般保險業務的保險人提供或給予)的適合性;
 - (b) 釐定將與申請者商討的補償、花紅及福利(若通過甄選);
 - (c) 與獲選申請者商討委任及向其提出委任;
 - (d) 向受委人提供補償及福利;
 - (e) 監督及管理受委人;
 - (f) 發展及維持宏利與受委人之間的委任關係,以及支持宏利及任何宏利集團成員的發展;
 - (g) 以助進行工作表現評估、發展安排及委任發展之有關活動;
 - (h) 監察宏利不時發佈的內部守則及指引之合規情況;
 - (i) 檢討委任決定;
 - (j) 在受委人缺席辦公室時聯絡該受委人;
 - (k) 評估受委人的培訓及發展需要;
 - (l) 管理受委人作出供款及／或從中受益的退休及／或公積金計劃;
 - (m) 與前受委人之委任相關剩餘活動,包括(但不限於)提供任職證明,處理再委任的相關申請以及退休及／或公積金計劃給付的相關事宜;以及讓宏利履行其合約或法定責任;
 - (n) 確認以及分辨申請者及／或受委人(視情況而定)的個別身份;
 - (o) 確認從申請者及／或受委人(視情況而定)收集所得資料的準確性;
 - (p) 就受委人所作、所遭受或以其他方式涉及的與其受委任有關的任何索償而言,與此等索償有關的目的,包括(但不限於)提出此等索償、就此等索償抗辯、分析、調查、處理、評估、作出決定或回應;
 - (q) 進行與人才任命相關的任何職能或活動,包括(但不限於)資料調查及分析;
 - (r) 開展核對程序(定義見《條例》),但廣義包括對資料當事人兩套或更多套的資料進行比對,以採取不利於資料當事人的行動,例如拒絕申請);
 - (s) 根據對宏利或宏利集團任何成員(無論在香港境內還是境外)有約束力或對其適用的任何法律、法規、規章、守則、指引或指南的規定進行披露,包括但不限於向當地或外國的監管機構、政府機構、法院、執法機構、或其他機構、公認行業組織、信貸資料服務機構或審計機構(無論在香港境內還是境外)進行披露;
 - (t) 由於宏利或宏利集團任何成員在相關當地或外國監管機構、政府機構、公認行業組織、信貸資料服務機構或審計

機構所在司法管轄區的或涉及該等司法管轄區的財務、商業、業務或其他利益或活動而由宏利或宏利集團任何成員承擔或施加給其的、與該等當地或外國監管機構、政府機構、或公認行業組織、信貸資料服務機構或審計機構（無論在香港境內還是境外）之間的任何合同、其他承諾或安排；

- (u) 用於經營目的、信貸評估、信貸評分模型或統計分析（每項均包括行為分析以及對與宏利集團之間總體關係的評估，其中包括為遵守關於在宏利集團內部共用資料和資訊的任何義務、要求、政策、程序、措施或安排而使用該等資料，及／或根據宏利集團內任何有關遵守制裁或防止或偵測洗錢、為恐怖份子提供資金或其他非法活動的計劃而對資料和資訊進行的其他使用），無論是針對資料當事人還是其他人的；
- (v) 行使宏利在委任受委人方面可能享有的任何權利；
- (w) 進行身份及／或信貸核查；
- (x) 確定應向受委人支付或受委人應付的任何債務金額，向受委人或向為受委人債務提供任何擔保或承諾的任何人收取和追討任何應收金額；
- (y) 使宏利或宏利集團任何成員的權利或業務的實際或擬議受讓人、承讓人、參與人或次級參與人能對該等受讓、承讓、參與或次級參與擬涉及的交易進行評估；
- (z) 向受委人委派的任何特定工作中具體規定的目的；
- (aa) 與上述相關的任何目的（包括尋求專業意見），或宏利或宏利集團任何成員的一般政策下有關人才管理的任何其他目的（於宏利或宏利集團成員不時向受委人提供的通知、通告或其他條款和條件中訂明）。

承轉人

5. 宏利持有的申請者及／或受委人（視情況而定）個人資料將予以保密，但宏利可就上文第4條所載的任何目的將該等資料移轉給下列人士及／或實體（無論在香港境內還是境外）：-

- (a) 與申請者、針對申請者或涉及申請者及／或受委人（視情況而定）就任何申請或委任事宜提出的任何索賠相關的任何人；
- (b) 向宏利或宏利集團任何成員提供與業務經營相關的行政管理、電信通訊、電腦、資訊技術、付款、資料處理或儲存、市場推廣、郵寄、列印、電話行銷、客戶滿意度分析或其他服務的任何代理、承辦商或第三方服務供應商，包括任何託管人，執行人，投資管理人，投資顧問或分銷商；
- (c) 任何信貸資料服務機構或（如出現付款違約）任何債務托收機構；
- (d) 任何宏利客戶（包括準客戶）；
- (e) 任何宏利受委人（包括受委人的僱員）；
- (f) 保險商、再保險商及醫療服務供應商；
- (g) 任何宏利或宏利集團成員的員工；
- (h) 已向宏利或宏利集團任何成員承諾將對該等資料保密的任何人士；
- (i) 宏利或宏利集團的權利或業務的任何實際或擬議受讓人、承讓人、參與人或次級參與人；
- (j) 宏利集團的任何成員；
- (k) 宏利或宏利集團任何成員根據對其有約束力或適用的任何法律、法規、規章、守則、指引或指南的規定有義務或必須向其披露的任何人士，其中包括但不限於任何當地或外國的監管機構、政府機構或公認行業組織、信貸資料服務機構或審計機構；
- (l) 根據由於宏利或宏利集團任何成員在相關當地或外國監管機構、政府機構、公認行業組織、信貸資料服務機構或審計機構所在司法管轄區的或涉及該等司法管轄區的財務、商業、業務或其他利益或活動而由宏利或宏利集團任何成員承擔或施加給其的、與該等當地或外國監管機構、政府機構、法院、執法機構、或其他機構、公認行業組織、信貸資料服務機構或審計機構（無論在香港境內還是境外）之間的任何合同、其他承諾或安排，有義務或必須向其披露的任何人士。

6. 根據《條例》，資料當事人有權：-

- (a) 要求查閱其個人資料；
- (b) 要求對其任何不準確的個人資料進行改正；
- (c) 查明資料使用者在個人資料方面的政策和慣例；
- (d) 了解資料使用者持有的個人資料類型；
- (e) 了解資料使用者持有的個人資料的主要目的或主要擬議目的；
- (f) 通過下文第7條所載的渠道提出查閱資料要求和改正資料要求。

7. 根據《條例》規定，宏利有權就處理任何查閱資料要求收取合理費用。要求可以書面形式提交給經銷獎酬部主任：

宏利人壽保險（國際）有限公司
香港九龍觀塘偉業街223-231號宏利金融中心A座22樓

宏利投資管理（香港）有限公司
香港九龍觀塘海濱道83號宏利大樓23樓

8. 本聲明的任何部分均不得產生或被詮釋為 (a) 宏利及／或宏利集團任何成員與 (b) 申請者及／或受委人 (視情況而定) 之間產生僱傭關係 (無論是否 (i) 明示或暗示, 或 (ii) 之間存續或現在或將來的)。

更新及變更

9. 宏利保留可隨時並在無須事先通知的情況下增添, 修改, 更新或修訂本聲明的權利, 並僅會知會申請者或受委人 (視情況而定) 有關增補, 修改, 更新或修訂。倘宏利決定修改此聲明 (或其相等文件), 宏利將於透過宏利的通訊渠道或以書面形式知會申請者或受委人有關更改, 以便申請者或受委人知悉宏利所收集的資料, 該資料如何使用及在何種情況下會披露該資料。任何有關修改, 更新或修訂將在通知後或宏利另行指定時即時生效。
10. 重要提示: 對於位於中華人民共和國境內 (為本聲明目的, 不包括香港, 澳門及台灣) 的申請者或受委人 (視情況而定), 特定的《有關〈中華人民共和國個人信息保護法〉的私隱附錄 (為內地居民設定)》(「私隱附錄」) 將為適用。此私隱附錄可在宏利的網站上獲取和查閱。
11. 為確保所有申請者或受委人充分了解關於宏利的個人信息處理的做法和標準, 本聲明提供多種語言版本。若翻譯版本之間有任何歧義, 將以英文版本為準。

Personal Information Collection Statement (Applicants for Appointment / Appointees)

DEFINITIONS

1. **“Data access request”, “data correction request”, “data subject”, “data user”, “matching procedures”** and **“personal data”** used throughout this Personal Information Collection Statement (**“Statement”**) shall have the meaning as defined in the Ordinance.

For the purpose of this Statement:

“appointment” shall mean the engagement of an individual whose service is procured through (i) in the case of Manulife (International) Limited, its standard form Career Agent’s Agreement and/or Agency Management Agreement and/or Career Pensioner’s Agreement and/or Personal Production Agreement and (ii) in the case of Manulife Investment Management (Hong Kong) Limited, its standard form Agent Agreement, with Manulife which appoints such individual, and the terms **“appoint”, “appointed”,** and **“appointee”** shall be construed accordingly.

“Hong Kong” shall mean the Hong Kong Special Administrative Region.

“applicant” shall mean an individual applying for an appointment.

“Manulife” shall mean Manulife (International) Limited, or Manulife Investment Management (Hong Kong) Limited (as the case may be) in respect of its respective applicants and/or appointees.

“Manulife Group” shall mean Manulife Financial Corporation and its subsidiaries and affiliates.

“Ordinance” shall mean Personal Data (Privacy) Ordinance.

COLLECTION

2. It is necessary for applicants to supply Manulife with personal data in connection with their applications. Failure to supply such data may result in Manulife being unable to process their applications.
3. It is also the case that personal data are collected or received by Manulife from and/or in respect of appointees throughout the course of their appointment.

PURPOSES

4. The purposes for which personal data of an applicant or appointee (as the case may be) may be used include the following: -
 - (a) assessing the applicant’s suitability to assume the duties of the position for which the applicant has applied and/or assessing the appointee’s suitability to assume the duties of any position (offered or provided by any member of Manulife Group, or any company or entity outside Manulife Group, including without limitation, insurer carrying on general insurance business) for which the appointee agrees to or is qualified to assume from time to time;
 - (b) determining preliminary compensation, bonus payment, and benefit package to be discussed with the applicant subject to selection for the position;
 - (c) negotiating with and making offers of appointment to selected applicant;
 - (d) provision of compensation and benefits for appointees;
 - (e) supervision and management of appointees;
 - (f) developing and maintaining the appointment relationship between Manulife and appointees and supporting the development of Manulife and any member of Manulife Group;
 - (g) facilitating performance appraisals, progression, and appointment development activities;
 - (h) monitoring compliance with internal rules and guidelines issued by Manulife from time to time;
 - (i) review of appointment decisions;
 - (j) contacting appointees when absent from the office;
 - (k) assessing the training and development needs of appointees;
 - (l) administering retirement and/or provident fund schemes to which appointees contribute and/or from which they may benefit;
 - (m) any residual appointment-related activities in relation to the former appointee including (but not limited to) provision of references, processing applications for re-appointment and matters relating to retirement and/or provident fund scheme payments; and allowing Manulife to fulfill contractual or statutory obligations;

- (n) confirming the identity of and uniquely identifying the applicant and/or appointee (as the case may be);
- (o) confirming the accuracy of the information collected from the applicant and/or appointee (as the case may be);
- (p) any purposes in connection with any claims made by or against or otherwise involving appointee in respect of his or her appointment including (but not limited to) making, defending, analysing, investigating, processing, assessing, determining, or responding to such claims;
- (q) performing any functions and activities related to talent engagement including (but not limited to) research and analysis;
- (r) conducting matching procedures (as defined in the Ordinance, but broadly includes comparison of two or more sets of the data subject's data, for purposes of taking actions adverse to the interests of the data subject, such as declining an application);
- (s) making disclosure under and/or complying with the requirements of any law, rules, regulations, codes of practice, guidelines or guidances binding on or applicable to Manulife or any member of Manulife Group (whether within or outside Hong Kong) including (but not limited to) making disclosure to local or foreign regulators, governmental bodies, court, law enforcements, or other authorities, industry recognised bodies, credit reference agencies, or auditors (whether within or outside Hong Kong);
- (t) complying with any contractual or other commitment or arrangement with local or foreign regulators, governmental bodies, or industry recognised bodies, credit reference agencies or auditors (whether within or outside Hong Kong) that is assumed by or imposed on Manulife or any member of Manulife Group by reason of its financial, commercial, business or other interests or activities in or related to the jurisdiction of the relevant local or foreign regulators, governmental bodies, industry recognised bodies, credit reference agencies or auditors;
- (u) for operational purposes, credit assessment, credit scoring models or statistical analysis (including in each case, behaviour analysis and evaluation on the overall relationship with Manulife Group which includes using such data to comply with any obligations, requirements, policies, procedures, measures or arrangements for sharing data and information within Manulife Group and/or other use of data and information in accordance with any Manulife Group-wide programmes for compliance with sanctions or prevention or detection of money laundering, terrorist financing or other unlawful activities), whether on the data subjects or otherwise;
- (v) exercising any rights Manulife may have in connection with the appointment of appointees;
- (w) conducting identity and/or credit checks;
- (x) determining any amount of indebtedness owing to or from appointees, and collecting and recovering any amount owing from appointees or any person who has provided any security or undertaking for the appointees' liabilities;
- (y) enabling an actual or proposed assignee, transferee, participant or sub-participant of the rights or business of Manulife or any member of Manulife Group to evaluate the transaction intended to be the subject of the assignment, transfer, participation, or sub-participation;
- (z) purposes specifically provided for in any particular assignments to appointees;
- (aa) any purposes relating to the above (including seeking professional advice) or any other purposes in accordance with the general policies of Manulife or any member of Manulife Group in relation to talent management as set out in notices, circulars, or other terms and conditions made available by Manulife or any member of Manulife Group to appointees from time to time.

TRANSFEREES

5. Personal data of an applicant and/or appointee (as the case may be) held by Manulife will be kept confidential, but Manulife may transfer such data to the following persons and/or entities (whether within or outside Hong Kong) for any of the purposes set out in paragraph 4 above: -
 - (a) any person in connection with any claims made by or against or otherwise involving applicants and/or appointees (as the case may be) in respect of any application or appointment;
 - (b) any agent, contractor or third-party service provider who provides administrative, telecommunications, computer, information technology, payment, data processing or storage, marketing, mailing, printing, telemarketing, customer satisfaction analysis, or other services to Manulife or any member of Manulife Group in connection with the operation of business, including any custodian, administrator, investment manager, investment advisor or distributor;
 - (c) any credit reference agencies or, in the event of default, any debt collection agencies;
 - (d) any customers (including potential customers) of Manulife;
 - (e) any appointees (including his or her employees) of Manulife;
 - (f) insurers, reinsurers, and medical service providers;
 - (g) any employees of Manulife or of any member of Manulife Group;
 - (h) any person which has undertaken to Manulife or any member of Manulife Group to keep such data confidential;
 - (i) any actual or proposed assignee, transferee, participant or sub-participant of the rights or business of Manulife or Manulife Group;
 - (j) any member of Manulife Group;

- (k) any person to whom Manulife or any member of Manulife Group is under an obligation or otherwise required to make disclosure under the requirements of any law, rules, regulations, codes of practice, guidelines or guidances binding on or applicable to Manulife or any member of Manulife Group including (but not limited to) any local or foreign regulators, governmental bodies, court, law enforcements, or other authorities, industry recognised bodies, credit reference agencies, or auditors;
 - (l) any person to whom Manulife or any member of Manulife Group is under an obligation or otherwise required to make disclosure pursuant to any contractual or other commitment or arrangement with local or foreign regulators, governmental bodies, industry recognised bodies, credit reference agencies or auditors (whether within or outside Hong Kong) that is assumed by or imposed on Manulife or any member of Manulife Group by reason of its financial, commercial, business, or other interests or activities in or related to the jurisdiction of the relevant local or foreign regulators, governmental bodies, industry recognised bodies, credit reference agencies, or auditors.
6. Under the Ordinance, a data subject has the right to: -
- (a) request access to his or her personal data;
 - (b) request correction of any of his or her personal data which is inaccurate;
 - (c) ascertain a data user's policies and practices in relation to personal data;
 - (d) be informed of the kind of personal data held by the data user;
 - (e) be informed of the main purposes for which personal data held by the data user are or are to be used;
 - (f) make data access request and data correction request through the channel set out in paragraph 7 below.
7. In accordance with the provisions of the Ordinance, Manulife has the right to charge a reasonable fee for processing any data access request. Requests may be made in writing to the Officer, Agency Compensation at: -
- Manulife (International) Limited
22/F., Tower A, Manulife Financial Centre, 223-231 Wai Yip Street, Kwun Tong, Kowloon, Hong Kong.
- Manulife Investment Management (Hong Kong) Limited
23/F., Manulife Tower, One Bay East, 83 Hoi Bun Road, Kwun Tong, Kowloon, Hong Kong.
8. Nothing herein shall create or be construed as creating an employment relationship (whether (i) express or implied; or (ii) subsisting or present or future) between (a) Manulife and/or any member of the Manulife Group; and (b) an applicant and/or appointee (as the case may be).

UPDATES AND CHANGES

9. Manulife reserves the right, at any time and without prior notice, to add, revise, update or modify this Statement, by notifying applicants and/or appointees (as the case may be) of such addition, revision, update, or modification. If Manulife decides to change this Statement (or its equivalent), Manulife shall notify applicants and/or appointees through Manulife's communications channel or in writing so that they are aware of the information that is collected, how that information may be used, and under what circumstances that information is disclosed. Any such revision, update or modification will be effective immediately upon notification or as otherwise specified by Manulife.
10. Important Note: For applicants and/or appointees (as the case may be) located within the borders of the People's Republic of China (excluding Hong Kong, Macao, and Taiwan for the purpose of this Statement), please be aware that a specific "Privacy Addendum for Personal Information Protection Law (For Mainland Chinese)" ("Privacy Addendum") is applicable. This Privacy Addendum is available and can be accessed on Manulife's website.
11. This Statement is provided in multiple languages to ensure all applicants and/or appointees are fully aware of Manulife's practices and standards regarding personal information handling. In the event of any discrepancies between the translations, the English version will prevail.